

		fractures in other Kia front-wheel drive vehicles is reasonably calculated to lead to admissible evidence regarding the existence of a defect and Defendant's notice of the defect. (Code Civ. Proc. § 2017.010; see Hasson v. Ford Motor Co. (1982) 32 Cal.3d 388, 403-404 ["The trial court plainly had a reasonable basis for admitting evidence of the numerous failures occurring in 1965 models for the purpose of showing the nearly identical 1966 models to be similarly defective."]) Defendant shall serve a further response and produce responsive documents, limited in scope to January 1, 2001 to present. Defendant shall serve a further verified response within 30 days of this order. Plaintiffs' request for sanctions is granted in the amount of \$6,250, payable within 30 days of this order. (Code Civ. Proc. § 2031.310(h).) <u>Plaintiff's Motion to Compel Further Responses to Requests for Production, Sets Two and Three</u> Plaintiffs' motion to compel a further response to RFPs Sets Two and Three, is GRANTED. Plaintiffs move to compel further responses to RFP Nos. 20-23, 26, 30, and 31-41 and DENIED as to RFPs 24 and 25. RFPs 20-23, 26, 30, and 31-41 seek documents regarding potential similar defects in other Kia models. As discussed above, Plaintiffs have shown that such discovery is reasonably calculated to lead to discovery of admissible evidence. Such discovery will allow the Court to make an informed decision as to whether defects in other models were substantially similar enough to be admissible at trial. Therefore, Defendant is ordered to serve further responses and produce documents in response to RFPs 20-23, 26, 30, and 31-41, limited in scope to January 1, 2001 to present. RFPs 24 and 25 seek documents related to Defendant's marketing of the 2017 Forte, the model purchased by Plaintiffs. These RFPs are vague and overbroad and Plaintiffs have not cited legal authority supporting such broad discovery as to Defendant's marketing materials. Therefore, the motion is denied as to RFPs 24 and 25 without prejudice to Plaintiffs' ability to conduct more narrowly tailored discovery on this issue. Plaintiffs' request for sanctions is granted in the amount of \$6,250, payable within 30 days of this order. (Code Civ. Proc. § 2031.310(h).)
10	2022-01275212 <i>Snavelly Family Trust vs. Capistrano Garden Homes Homeowners Association No. 2</i>	OFF CALENDAR

11	2022-01275296 <i>Zhang vs. Zhu</i>	Motion to Compel Deposition (Oral or Written) Motion to Compel Deposition Plaintiff's Motion to Compel Deposition of Angel Pik-Chuen Lee and Production of Documents is DENIED without prejudice. California Rules of Court, Rule 3.1346 provides, "Rule 3.1346. Service of motion papers on nonparty deponent A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." Here, the proof of service for the motion does not reflect service of the motion on the nonparty deponent by any means. The motion does not comply with Rule 3.1346 and the deponent has not received notice and an opportunity to respond to the motion. The motion is denied without prejudice to Plaintiff's ability to file a renewed motion with proper service on the deponent.
12	2017-00956655 <i>Thier vs. Farah</i>	Motion to Enforce Settlement Plaintiffs/Cross-Defendant Paul Thier, Thier Ranches, LLC and Wanda Mascia Motion to Enforce the Settlement pursuant to CCP 664.46 is DENIED in part. On 9-21-21, the parties entered into a settlement made orally before the Court. The terms of the agreement are as follows: 1. There will be an "all-inclusive document encompassing these terms" (Shaw Decl., ¶ 2, Ex. A [September 22, 2021, Trial Transcript] at 23:2-3); 2. "Clickers will be needed to gain access through that entry point at the Hamilton Gate entrance to what we call Strip 2 of the Easement" (Id. at 23:4-7); 3. "The Hickey Gate on the south part of the 25 acre will be coded" (Id. at 23:12-14.); 4. There will be an easement granted to Mr. Thier that provides for "vehicular and pedestrian, as well as equestrian rights but only as equestrian rights as [to] Strip 1, and usage for the Strip 1 for equestrian purposes is limited to 20 round trips per day" (Id. at 23:15-20); 5. The settlement document will include an indemnity and hold harmless provision (Id. at 23:21-22);